

# POSH

## Sexual Harassment of Women at Workplace

- (Prevention, Prohibition and Redressal) Act, 2013



# Background to the Act

*“Whereas sexual harassment results in violation of the fundamental rights of a Woman to equality.....”*

[Preamble, Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act]

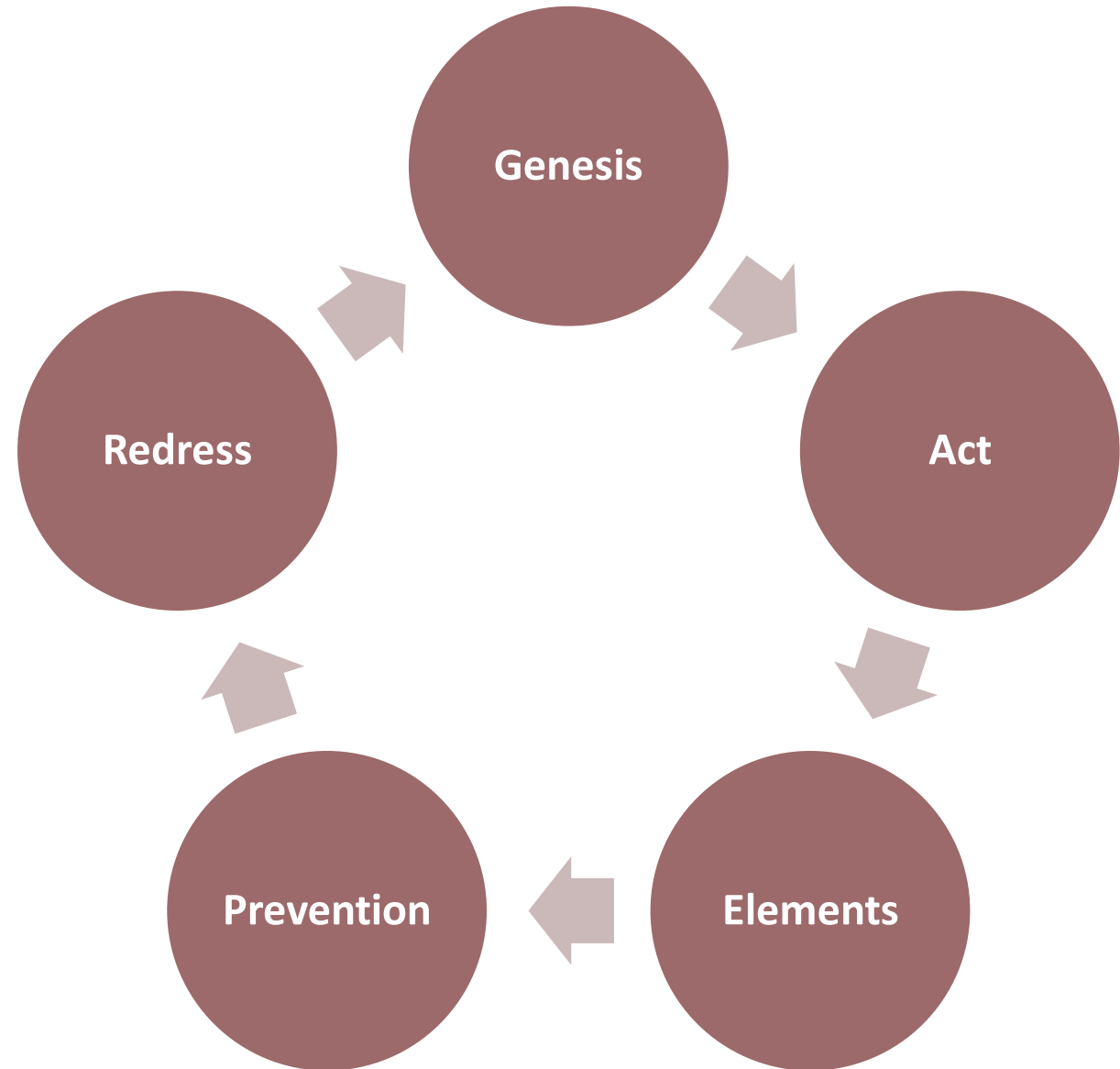
A safe workplace is therefore a woman’s legal right. Indeed, the Constitutional belief of equality and personal liberty is contained in Articles 14, 15 and 21 of the Indian Constitution. These articles ensure a person’s right to equal protection under the law, to live a life free from discrimination on any ground and to protection of life and personal liberty.

It is important as well to ensure that the emphasis is on prevention rather than punitive action. This calls for widespread awareness on the Act among employers, managers and the workers themselves



# Layout of the presentation

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# The Genesis



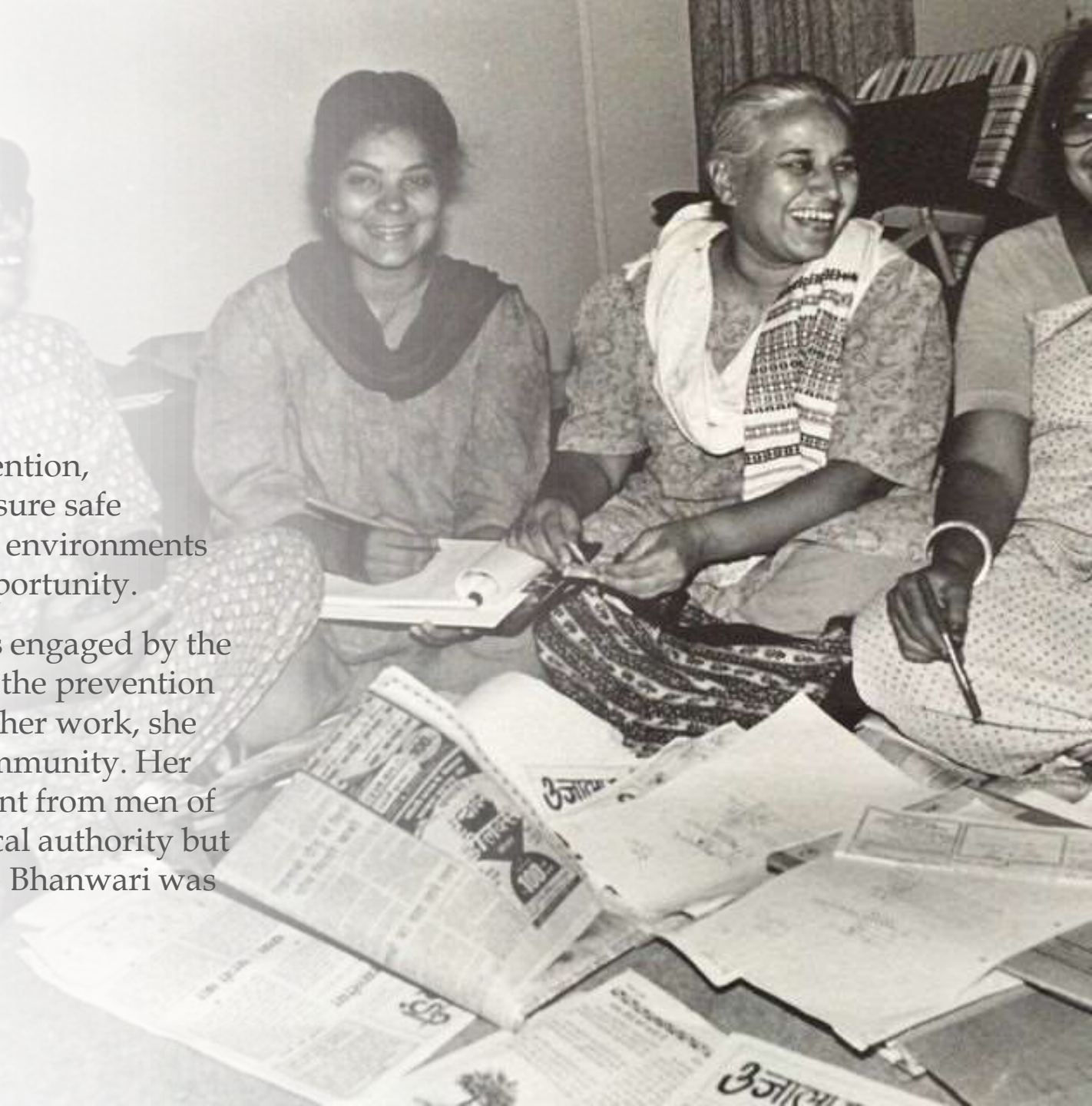


# The Genesis

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The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 was enacted to ensure safe working spaces for women and to build enabling work environments that respect women's right to equality of status and opportunity.

In 1992, a rural level change agent, Bhanwari Devi, was engaged by the state of Rajasthan as a Sathin (Friend) to work towards the prevention of the practice of child marriages. During the course of her work, she prevented the marriage of a one-year old girl in the community. Her work was met with resentment and attracted harassment from men of that community. Bhanwari Devi reported this to the local authority but no action was taken. That omission came at great cost – Bhanwari was subsequently gang raped by those very men.



# Supreme Court of India

It placed responsibility on employers to ensure that women do not face a hostile environment, and prohibited intimidation or victimization of those cooperating with an inquiry, including the affected complainant as well as witnesses.

**Vishaka established that international standards/law could serve to expand the scope of India's Constitutional guarantees and fill in the gaps wherever they exist.**







The ACT

## The Act

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The Supreme Court placed an obligation on workplaces, institutions and those in positions of responsibility, to uphold working women's fundamental right to equality and dignity at the workplace. Three key obligations were imposed on institutions to meet that standard, namely:

1. **Prohibition**
2. **Prevention**
3. **Redress**

In 2013, the Government of India notified the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act (referred to as Act hereinafter). Consistent with the Vishaka judgment, the Act aspires to ensure women's right to workplace equality, free from sexual harassment through compliance with the above mentioned three elements



## Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

### Aggrieved Woman

The Act recognizes the right of every woman to a safe and secure workplace environment irrespective of her age or employment/work status. Hence, the right of all women working or visiting any workplace whether in the capacity of regular, temporary, adhoc, or daily wages basis is protected under the Act.

It includes all women whether engaged directly or through an agent including a contractor, with or without the knowledge of the principal employer. They may be working for remuneration, on a voluntary basis or otherwise. Their terms of employment can be express or implied.

Further, she could be a co-worker, a contract worker, probationer, trainee, or called by any other such name. The Act also covers a woman, who is working in a dwelling place or house.



## Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

### Definition of a Workplace

A workplace is defined as “any place visited by the employee arising out of or during the course of employment, including transportation provided by the employer for undertaking such a journey.”

As per this definition, a workplace covers both the organized and un-organized sectors.

- It also includes all workplaces whether owned by Indian or foreign company having a place of work in India.

As per the Act, workplace includes:

- Government organizations, including Government company, corporations and cooperative societies;

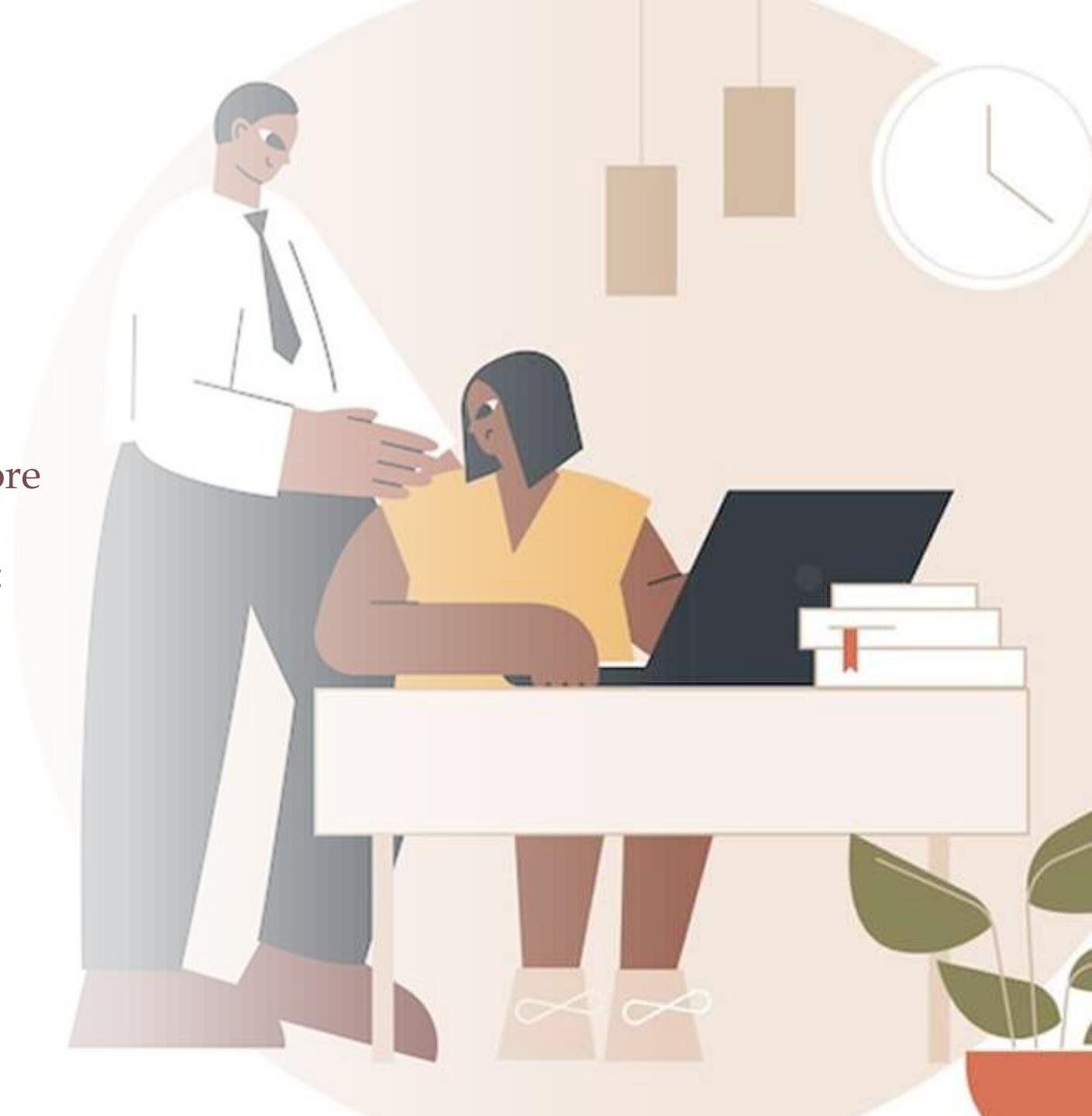


## What is Sexual Harassment

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“**Sexual Harassment**” includes anyone or more of the following unwelcome acts or behavior (whether directly or by implication), namely:

1. Physical contact.
2. A demand or request for sexual favors
3. Making sexually colored remarks
4. Showing pornography
5. Any other unwelcome physical, verbal or non-verbal conduct of a sexual nature





# Key Elements of Sexual Harassment

- Very often situations that start off innocently end up in inappropriate and unprofessional behaviors. It is important to remember that **workplace sexual harassment** is **sexual**, **unwelcome** and **the experience is subjective**. It is **the impact** and **not the intent** that matters and it usually occurs in a **matrix of power**. It is important also to remember that each case is **unique** and should be examined in its own context and according to the surrounding circumstances as a whole.
- **THE FIRST STEP TO PREVENTION IS RECOGNITION**
- Workplace Sexual Harassment is behaviour that is
  - - **UNWELCOME**
  - - **SEXUAL** in nature
  - - A **SUBJECTIVE** experience
  - - **IMPACT** not intent is what matters
  - - Often occurs in a matrix of **POWER**

# Impact of Inappropriate Behaviour

| Professional                                                             | Personal                                        |
|--------------------------------------------------------------------------|-------------------------------------------------|
| Decreased work performance                                               | Depression                                      |
| Increased absenteeism, loss of pay                                       | Anxiety, panic attacks                          |
| Retaliation from the respondent, or colleagues/friends of the respondent | Shame, guilt, self-blame                        |
| Subjected to gossip and scrutiny at work                                 | Difficulty in concentrating                     |
| Becoming publicly sexualized                                             | Fatigue, loss of motivation                     |
| Defamation                                                               | Eating disorders (weight loss or gain)          |
| Being ostracized                                                         | Feeling angry or violent towards the respondent |
| Job and career consequences                                              | Loss of confidence and self esteem              |

# Behaviors / Scenarios that constitute Sexual Harassment



Some examples of behaviour that constitute sexual harassment at the workplace:

- Making sexually suggestive remarks.
- Serious or repeated offensive remarks, such as teasing related to a person's body or appearance
- Offensive comments or jokes
- Inappropriate questions, suggestions or remarks about a person's sex life
- Displaying sexist or other offensive pictures, posters, mms, sms, whatsapp, or e-mails
- Intimidation, threats, blackmail around sexual favours
- Unwelcome social invitations, with sexual overtones commonly understood as flirting
- Unwelcome sexual advances which may or may not be accompanied by promises or threats, explicit or implicit



# Behaviours / Scenarios that constitute Sexual Harassment

- Physical contact such as touching or pinching
- Caressing, kissing or fondling someone against her will (could be considered assault)
- Persistently asking someone out, despite being turned down
- Stalking an individual
- Abuse of authority or power to threaten a person's job or undermine her performance against sexual favours
- Falsely accusing and undermining a person behind closed doors for sexual favours
- Controlling a person's reputation by rumor-mongering about her private life

# Behaviours / Scenarios that DO NOT constitute Sexual Harassment

Some examples of workplace behaviours that may not constitute sexual harassment:

- Following-up on work absences
- Requiring performance to job standards
- The normal exercise of management rights
- Work-related stress e.g. meeting deadlines or quality standards
- Conditions of works
- Constructive feedback about the work mistake and not the person

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# Prevention and Prohibition



# Complaints Committee

The Act provides for two kinds of complaints mechanisms: **Internal Complaints Committee (ICC)** and **Local Complaints Committee (LCC)**. All Complaints Committees must have 50 per cent representation of women. ICC or LCC members will hold their position not exceeding three years from the date of their nomination or appointment.

## 1. Internal Complaints Committee (ICC)

Every employer is obliged to constitute an ICC through a written order. The ICC will be composed of the following members:

- Anirudh Varshney- [anirudh@trailytics.com](mailto:anirudh@trailytics.com)
- Ashutosh Shukla- [ashutosh.shukla@trailytics.com](mailto:ashutosh.shukla@trailytics.com)
- Shafaque Jahan: [shafaque.j@trailytics.com](mailto:shafaque.j@trailytics.com)
- Tanu Raghav- [tanu.r@trailytics.com](mailto:tanu.r@trailytics.com)



# External Members on the Complaints Committee/s

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The Act refers to external members, which generally means persons who have expertise with the issue of sexual harassment. Given the largely intangible nature of workplace sexual harassment, there are a range of complexities involved in responding effectively to workplace sexual harassment complaints. For this reason, external third party/ members on the Complaints Committee/s (from civil society or legal background) should possess the following attributes:

- Demonstrated knowledge, skill and capacity in dealing with workplace sexual harassment issues/complaints;
- Sound grasp and practice of the legal aspects/implications

## Sexual Harassment at Workplace Policy

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Employers/District Officers are responsible for complying with prohibition, prevention and redress of workplace sexual harassment. In practice, this means having a policy that

1. Prohibits unwelcome behaviour that constitutes workplace sexual harassment
2. Champions prevention of workplace sexual harassment through orientation, awareness and sensitization sessions; and
3. Provides a detailed framework for redress

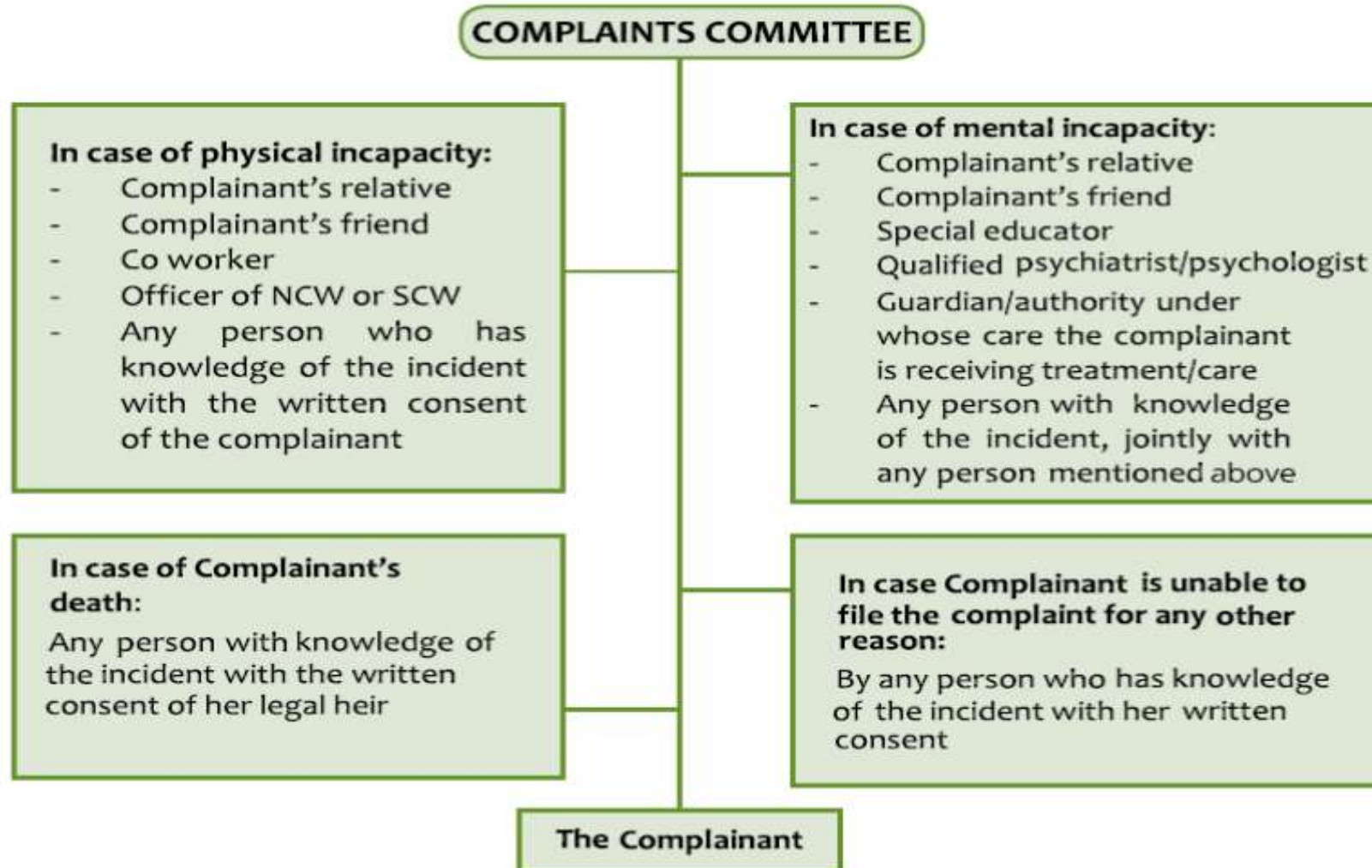




# REDRESS

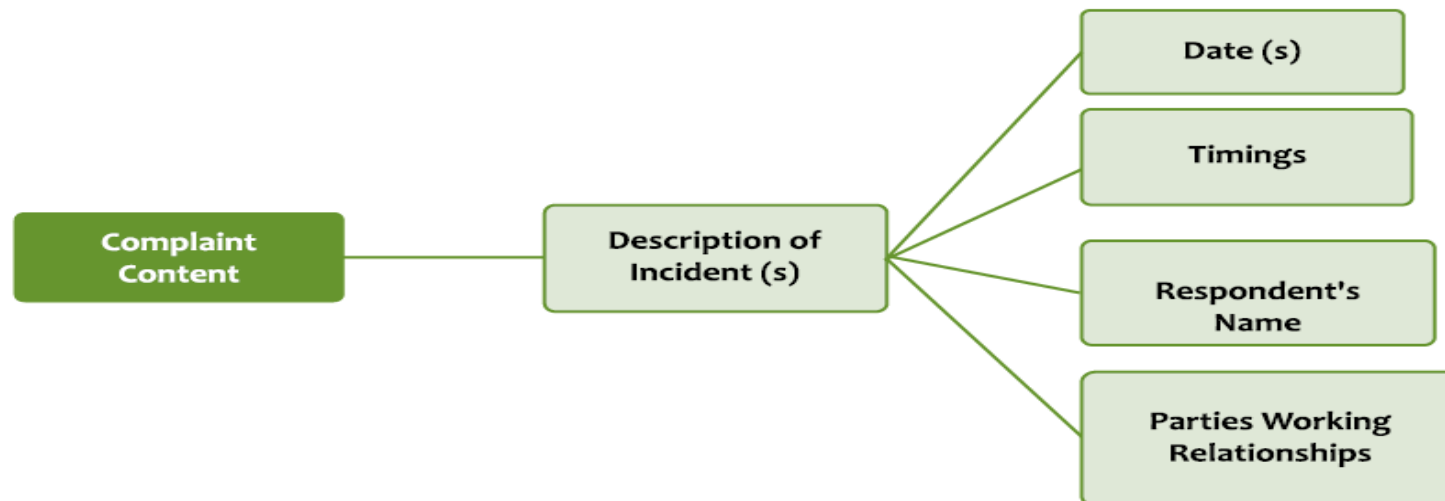


# WHO CAN COMPLAIN AND WHERE



# WHAT SHOULD THE COMPLAINT CONTAIN?

The written complaint should contain a description of each incident(s). It should include relevant dates, timings and locations; name of the respondent(s); and the working relationship between the parties. A person designated to manage the workplace sexual harassment complaint is required to provide assistance in writing of the complaint if the complainant seeks it for any reason.





## Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

An inquiry must be completed within 90 days and a final report submitted to the Employer or District Officer (as the case may be) within ten days thereafter. Such report will also be made available to the concerned parties. The Employer or District Officer is obliged to act on the recommendations within 60 days.

Any person not satisfied with the findings or recommendations of the Complaints Committee or non-implementation of the recommendations, may appeal in an appropriate court, as prescribed under the Service Rules or where no such service rules exist, in such manner as may be prescribed.

# Overview of Timelines as per the Act

|                                                |                                                  |
|------------------------------------------------|--------------------------------------------------|
| Submission of Complaint                        | Within 3 months of the last incident             |
| Notice to the Respondent                       | Within 7 days of receiving copy of the complaint |
| Completion of Inquiry                          | Within 90 days                                   |
| Submission of Report by ICC/LCC to employer/DO | Within 10 days of completion of the inquiry      |
| Implementation of Recommendations              | Within 60 days                                   |
| Appeal                                         | Within 90 days of the recommendations            |

# Confidentiality as per the Act

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The Act prohibits the publication or making known the contents of a complaint and the inquiry proceedings. Any breach of confidentiality will result in specific consequences.

The Act prohibits the disclosure of

1. Contents of the complaint
2. Identity and address of complainant, respondent and witnesses; Information pertaining to conciliatory/inquiry proceedings or recommendations of the ICC/LCC
3. Action taken by the employer/DO



# THANK YOU

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